

26VECV00972 26VECV00972

County: los-angeles

Division: Civil Law and Motion

Department: U

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Case Number: 26VECV00972 Hearing Date: July 30, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ALLY BANK LEASE TRUST, a corporation,

Plaintiff,

vs.

STT INVESTMENT INC., a corporation; JAVID MARGHZAR, an individual; DOES 1-10, inclusive,

Defendants.

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CASE NO: 26VECV00972

[TENTATIVE] RULING RE: PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION

Dept. U

8:30 a.m.

July 30, 2026

BACKGROUND

This case is an action for claim and delivery of an automobile.

On February 17, 2026, Plaintiff Ally Bank Lease Trust filed its complaint against Defendants STT Investment Inc. ("STT") and Javid Marghzar ("Marghzar"), seeking claim and delivery.

On March 5, 2026, Plaintiff filed its application for writ of possession.

On April 10, 2026, Plaintiff filed proofs of service documenting service of the summons, complaint, and application for writ of attachment on Defendants.

As of 1:00 P.M. on July 27, 2026, nothing further had been filed in this matter by any party.

RULING

The application is denied without prejudice.

LEGAL STANDARD

To prevail on an application for writ of possession, a plaintiff must satisfy two preliminary procedural requirements: (a) show that its claim of immediate right to possession of tangible, personal property is “probably valid” against the defendant; and (b) post a bond. Code Civ. Proc., §§ 512.010, 512.040 (b), 515.010; *Englert v. IVAC Corp.* (1979) 92 Cal.App.3d 178, 184. Whether an applicant’s claim is probably valid will depend on the applicable substantive violation for which the plaintiff is pursuing the writ. To avoid an unreasonable seizure under the Fourth Amendment, a plaintiff must show probable cause as to the validity of the property’s location. Code Civ. Proc., § 512.090.

DISCUSSION

Plaintiff filed an application for writ of possession. The application is denied without prejudice.

Plaintiff’s evidence is sufficient to support the probable validity of its claim.

Plaintiff requests that the Court issue a writ of possession for a 2022 Ram 5500 Chassis motor vehicle, VIN #3C7WRNFL5NG189958 (the “Subject Vehicle”). Defendants leased the Subject Vehicle on February 28, 2022, pursuant to a lease agreement (the “Lease”). STT is the Subject Vehicle’s lessee, and Marghzar signed the Lease as a guarantor. The Lease provides that Plaintiff has the right to immediate possession of the Subject Vehicle upon default. (See Caballero decl., ¶ 5, Exh. A.)

On January 28, 2025, Defendants defaulted on the Lease by failing to make payments. As of the charge-off date of May 30, 2025, there is now \$39,670.56 due and owing on the Lease. Defendants failed to surrender possession of the Subject Vehicle. (See Caballero decl., ¶ 6.)

The Court has reviewed and considered the evidence submitted by Plaintiff in support of its application for writ of possession, including the declaration of Fernando Caballero, Plaintiff’s authorized representative to review accounts sent to litigation; a copy of the Lease; a copy of the Subject Vehicle’s title document; and evidence of the Subject Vehicle’s present value from J.D. Power. (See Caballero decl., Exhs. A-C.)

Plaintiff’s evidence is sufficient to establish that Plaintiff is entitled to possession of the Subject Vehicle. See Code Civ. Proc., § 512.010.

Plaintiff’s evidence is insufficient to show probable cause as to the Subject Vehicle’s current location because Plaintiff fails to include evidence of Defendants’ current address(es).

The statutory procedures for obtaining a writ of possession provide that there can be no seizure without a plaintiff’s accurate designation of a vehicle with enough specificity that a levying officer can find it on the premises. See Code Civ. Proc., §§ 512.080 (c), 512.090. “No writ directing the levying officer to enter a private place to take possession of any property shall be issued unless the plaintiff has established that there is probable cause to believe that the property is located there.” Code Civ. Proc., § 512.060 (b).

Here, Plaintiff’s representative attests that STT “has its principal place of business at 12021 Wilshire Blvd., Los Angeles, CA 90025,” and “Marghzar resides at 12021 Wilshire Blvd., Los Angeles, CA 90025 and also at 8648 Sepulveda Blvd., Van Nuys, CA 91405.” As evidence of these facts, Plaintiff cites its internal files. Plaintiff’s declarant states, “In reliance upon the information contained in the file and computer system of Plaintiff pertaining to the Vehicle, to the best of my knowledge, information and belief, the current location of the Vehicle is as follows: 12021 Wilshire Blvd., Los Angeles, CA 90025 or 8648

Sepulveda Blvd., Van Nuys, CA 91405." (Caballero decl., ¶ 10.)

The declaration testimony regarding Defendants' addresses is by itself insufficient to satisfy the probable cause requirement under Section 512.060 (b). The information included in Plaintiff's internal files likely dates back to the Lease's execution, i.e., to February of 2022. Now, more than four (4) years later, Plaintiff offers no assurances that it has verified Defendants' addresses are current.

If Plaintiff provides a declaration from an investigator who affirms that the car was recently seen at the property; a Post Office record; or an affidavit stating that Plaintiff has cross-referenced its records for Defendants' addresses with records from the Post Office, such evidence will likely be sufficient to show probable cause as to the Subject Vehicle's location. In the absence of any verification of Defendants' current addresses, the application for writ of possession is denied without prejudice.

CONCLUSION

Plaintiff Ally Bank Lease Trust's application for a writ of possession is DENIED without prejudice. In any further application, Plaintiff Ally Bank Lease Trust should provide a United States Post Office record or similar document as evidence of Defendants' current address(es) or an affidavit stating that it has cross-referenced its own records with records from the Post Office.

The Clerk is ORDERED to give notice.

DATED: July 30, 2026

Lee Arian

Judge of the Superior Court